BOBCAT TRAIL HOMEOWNERS ASSOCIATION, INC.
BOARD OF DIRECTORS MEETING
WEDNESDAY, JANUARY 25, 2017

A Board of Directors Meeting of Bobcat Trail Homeowners Association, Inc. was held on Wednesday, January 25, 2017 at 3:00PM at the Bobcat Trail Community Center 1352 Bobcat Trail, North Port, Florida 34288.

1. **CALL TO ORDER:** President Wagner called the meeting to order at 3:02 PM.

2. **STATEMENT OF QUORUM:** Directors Alden, Collins, Daughdrill, D'Onofrio, Mastropietro and Wagner were present in person. Charles Clotfelter was present representing Advanced Management, Inc. (AMI).

3. **PROOF OF NOTICE:** Director Daughdrill confirmed that proper notice had been provided, no less than 48 hours in advance, in accordance with Florida State Statutes and the Association's Governing Documents.

4. **READING/APPROVAL OF MINUTES FROM NOVEMBER 16, 2016**: A ***motion*** was made by Director Daughdrill, seconded by Director D'Onofrio to waive the reading and approve the Board Meeting minutes of November 16, 2016 as presented. ***The motion passed unanimously.***

5. **REPORTS:**
   A. Financial Report: Director D'Onofrio reported that the Association was ahead by $9,000.00 and most of it from the fines. BCT finished the year with $75,000.00 in cash.

   B. Management Report: Charles Clotfelter provided the Management Report. *A copy of which is posted on the website.*

   C. Officers Reports: Director Wagner reported that Director Collins was appointed liaison to the ARC Committee. The city said that the Recycling Containers are now expected to be delivered in March. Dir. Wagner reminded the owners to get their proxies for the annual meeting in to AMI. The web site will be managed by Ron Holcomb. He has updated the 2017 page and the resident information.

   D. Committee Reports:
   - **ACC:** Dave Daughdrill reported that in January there were six (6) requests and all were approved. For the calendar year 2016 there were 304 violations, which is below the average for the last eight (8) years. The number of violations referred to the Board was 40.
   - **T.E.S.:** Director Alden reported that they had approved two time extensions.
   - **Hearing Panel:** Rita Smith reported that the Hearing Panel met on November 16, 2016, heard the Board's actions and concurred with the Board on all actions.

6. **UNFINISHED BUSINESS:**
   A. Letter of Understanding – CDD & HOA (Sidewalks & Street Trees): Director Collins reported the street trees and sidewalks belong to the CDD. The HOA has no authorization to mandate things that are in the CDD property. The Agreement binds CDD to maintain the sidewalks and the "street trees". Director Mastropietro commented that the Letters of Understanding are a good

thing. He also pointed out that the sidewalks need cleaning; they are very slippery. Director Wagner suggested that the document should be posted on the BCT website.
Opened for owner comments: Jim Wrisley petitioned CDD to allow him to replace his sidewalk. They granted it because they did not want to spend the money for that work.

B. Letter of Understanding Addendum – CDD & HOA: Director Wagner explained the purpose of this Letter have an agreement between CDD and the HOA. There is a procedural method for handling issues that affect both entities.

C. Any Other Unfinished Business: None

7. **NEW BUSINESS:**

A. Overnight Parking/Towing: Dave Daughdrill said our covenants say vehicles cannot be parked on the street at night. The covenants also do not allow the HOA to tow a vehicle. John Hall has spoken to the owners about not parking there but they have not been cooperative. Another homeowner related a different parking problem where vehicles were parking all day long creating a hazard for others.

B. Vicious Dog: The dog has been declared as a vicious dog by the Magistrate. If someone is willing to say he or she has seen the dog in violation of any of the restrictions imposed by the Magistrate, the County has an ordinance that provides for removal and euthanizing the animal. Dave Stevens and his wife have witnessed the dog outside without a muzzle or on a leash. Director Daughdrill made a ***motion*** to send the letter to the owner of the dog and make sure the witnesses are given the name and number of the County Bite Coordinator to contact. ***The motion was seconded by Director Alden and passes unanimously.***

C. Yard Light Service Contract: Dryer Vent Cleaning Service quoted a fee of $175.00 per month or $2,100.00 per year. There is a cost savings of $2,410.00 or 42% savings. A ***motion*** by Director D'Onofrio to terminate A&B effective the end of January and begin with DVC February 1st. Seconded by Director Alden. ***Motion passed unanimously.***

D. Quorum Planning: Director Daughdrill met with AMI manager and Admin Assistant to plan keeping up with the proxies and keep the Board advised as to how many have come in. Each packet of information has a proxy, a voter certificate and a stamped self-addressed envelope. All they have to do is sign the proxy and the voter certificate if necessary and mail it back to AMI.

E. Social Committee: Director Wagner asked the Board do we need to be in charge of social events? Director Alden said that in the Villas they have a Social Committee not connected with the Board. The community has planned, raised funds and bought insurance and had the party, all totally separate from the Board.

F. Review of 2017 Meeting Calendar: The BCT Board meeting are the fourth Wednesday in each month except November is the third Wednesday and there is no meeting scheduled for December.

G. Any Other New Business: None

H. The owner at 2774 Royal Palm requested permission to add window protection to two of his windows to keep golf balls from damaging them. A ***motion*** was made by Director Daughdrill, seconded by Director Alden to approve the request to allow the installation of window protection. ***The motion passed unanimously***

I. An owner asked what is the ACC. Director Wagner explained and directed the owner to the website.

J. Any Other New Business: No further new business was brought before the Board.

8. **POTENTIAL FINES:** On 11/15/16 Director Daughdrill, inspected all violations that were to come

before the Board today for potential fines. The dispositions are as follows.

A. **3304 Baily Palm** – Palm Tree Trimming Trimmed
B. **1728 Bobcat Trail** – Palm Tree Trimming Trimmed
C. **1841 Silver Palm Road** – Palm Tree Trimming Trimmed
D. **3196 Royal Palm Dr.** – Stain on Right Side of Home Cleaned
E. **2443 Silver Palm Road** – Dirty Roof Cleaned
F. **1821 Bobcat Trail** – Colored Front Yard Light Bulb Removed

A ***motion*** was made by Director Daughdrill, seconded by Director D'Onofrio to waive the fine for all owners who have complied. ***The motion passed unanimously.***

The following are not in compliance:

A. **2760 Royal Palm Drive** – Overnight Parking. Ms. Sanchez presented an appeal to the Board. A ***motion*** was made by Director D'Onofrio, seconded by Director Daughdrill to not fine the owner. ***The motion passed unanimously.***

B. **1841 Bobcat Trail** – Trees have not been trimmed. Mr. Daughdrill had checked yesterday and the Palms had not been trimmed. Ms. Rita Smith checked this morning and said they are trimmed. A ***motion*** was made by Director Mastropietro, seconded by Director Alden not to fine the owner if the trees have been trimmed but if the tees have not been trimmed, fine the owner $100.00 plus $10.00 per day until the infraction is cured. ***The motion passed unanimously.***

9. **OWNERS COMMENTS:**
   - David Stevens, 2373 Silver Palm Road. Mr. Stevens said he received a notice in September about needing to trim an Oak tree. He contacted his landscaper to do the trimming. He did not get a letter in Canada. When he returned to Bobcat, he found two letters dated October 18, 2016 and November 18, 2016. He and Dave Daughdrill looked at the tree and determined the branches were about 10 feet off the street. He had his landscaper re-trim the tree. He said he did not think he should be fined for something he thought had been cured and for something that he was not aware of. Director Alden made a ***motion*** to waive the fine in view of the circumstances. Seconded by Director Mastropietro. ***Motion failed.*** Director D'Onofrio made a ***motion*** AMI gather additional information with respect to where the mailings went and to whom they were addressed and report back to the Board at the February meeting. Then the Board will decide whether to let the fine stay of be withdrawn. Seconded by Director Daughdrill. ***The motion passed.***
   - Carol thanked the Board for getting a new lighting company.

The next Meeting will be February 22, 2017.

10. **ADJOURNMENT:** There being no further business to come before the Board, a ***motion*** was made by Director D'Onofrio, to adjourn the meeting at 5:12 PM. ***The motion passed unanimously***

Respectfully submitted,

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Charles Clotfelter
Licensed Community Association Manager